

Punit Kumar Gupta v. State of U.P. and others

Allahabad High Court · Division Bench · 20 September 2017 · Writ-C No. 44598 of 2017 · **Writ disposed; EE directed to order instalments under clause 6.14.**

HEADNOTE

A consumer facing recovery of electricity dues who offers to deposit the amount and seeks instalments is remitted to the Executive Engineer. Clause 6.14 of the U.P. Electricity Supply Code, 2005 vests that officer with power to allow instalment payment. On production of a certified copy within one week, the Executive Engineer shall within two weeks pass an appropriate instalment order on the facts of the case; recovery remains subject to that order.

FACTUAL SUMMARY

Punit Kumar Gupta filed a writ petition in the Allahabad High Court against recovery of electricity dues. After hearing, his counsel stated that he was prepared to deposit the amount sought to be recovered and prayed that instalments be allowed. Counsel for the Electricity Department pointed to clause 6.14 of the U.P. Electricity Supply Code, 2005, under which the Executive Engineer is empowered to extend instalment benefits for payment of such dues.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for payment of dues under recovery

HOLDING

Clause 6.14 confers on the Executive Engineer power to allow payment of electricity dues in instalments. Where the consumer offers to deposit the amount under recovery and seeks that facility, the Court will not itself structure the instalments but will direct the Executive Engineer, on production of a certified copy within one week, to pass an appropriate instalment order within two weeks on the facts of the case, recovery remaining subject to that order. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated clause 6.14 as the exclusive source of instalment relief and sent the petitioner to the Executive Engineer instead of granting a court-fashioned schedule. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — QUANTUM OF DUES AND THE INSTALMENT SCHEDULE

Left to the Executive Engineer under clause 6.14 on the facts of the case. ¶ 1